

[illegible]

## **Section A - Solicitation/Contract Form**

Liebert CW System

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                | Quantity | Unit | Unit Price | Amount |
|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001 | <p>Liebert CoolPhase Precision Cooling System</p> <p>SPECS - See Section C - Materials/Requirements List<br/>INSTALLATION - See Section C - Statement of Work (SOW)</p> <p>Manufacturer's Part Number: DS042AZA1E0<br/>Pricing Arrangement: Firm Fixed Price</p>                | 4        | Each |            |        |
| 0002 | <p>Vertiv CoolPhase Outdoor Air-Cooled Microchannel Condenser</p> <p>SPECS - See Section C - Materials/Requirements List<br/>INSTALLATION - See Section C - Statement of Work (SOW)</p> <p>Manufacturer's Part Number: MCS056E5AD<br/>Pricing Arrangement: Firm Fixed Price</p> | 4        | Each |            |        |
| 0003 | <p>FREIGHT</p> <p>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                     | 1        | Lot  |            |        |

## Section C - Description/Specifications/Statement of Work

| REQUIREMENTS LIST                           |                                                                                                                                                                                          |          |               |
|---------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------------|
| Part Number                                 | Description                                                                                                                                                                              | Quantity | Unit of Issue |
| DS042AZA1E0                                 | Liebert CoolPhase Precision Cooling System (Specifications follow)                                                                                                                       | 4        | Each          |
|                                             | Nominal 42 kW, 12 ton, floor mounted, downflow                                                                                                                                           |          |               |
|                                             | Input Supply Voltage: 460 Volt, 3 Phase, 60 Hertz                                                                                                                                        |          |               |
|                                             | 65,000 amp RMS Short Circuit Current Rating                                                                                                                                              |          |               |
|                                             | 14 Gauge Welded Steel Frame with Autophoretic Coating                                                                                                                                    |          |               |
|                                             | Frame can be field separated into three sections for transport through small areas.                                                                                                      |          |               |
|                                             | Front Service Access Only                                                                                                                                                                |          |               |
|                                             | Supply Air Exits the Bottom of the Unit, Return Air enters through the Top of the Unit                                                                                                   |          |               |
|                                             | Backwards Inclined Fan with Variable Speed Direct Drive EC Motors, 4.2 HP                                                                                                                | 1        |               |
|                                             | Dual Refrigeration Circuits with Liquid Line Filter Driers, Refrigerant Sight Glasses, Expansion Valves and Liquid Line Solenoid Valves                                                  |          |               |
|                                             | Independent Digital Scroll Compressors with Unloading Solenoid Valve                                                                                                                     | 2        |               |
|                                             | Dual Refrigeration Circuits with Liquid Line Filter Driers, Refrigerant Sight Glasses, Expansion Valves and Liquid Line Solenoid Valves                                                  |          |               |
|                                             | A-Frame Evaporator Coil with Stainless Steel Condensate Pan                                                                                                                              |          |               |
|                                             | R-454B Refrigerant System, Field Supplied and Field Charged                                                                                                                              |          |               |
|                                             | Three-Stage, Finned Tubular, Stainless Steel Electric Reheat, Capacity: 25 kW                                                                                                            |          |               |
|                                             | 4" MERV 8 Filter Package                                                                                                                                                                 |          |               |
|                                             | Liebert iCOM Microprocessor Control with High-Definition Display                                                                                                                         |          |               |
|                                             | Liebert iCOM Based BMS Communication                                                                                                                                                     |          |               |
|                                             | Base Comms & Connectivity includes one Ethernet port and one RS-485 port on iCOM controller, dedicated to supporting BACnet IP, Modbus TCP/IP, BACnet 485, Modbus 485 and SNMP v1/v2c/v3 |          |               |
|                                             | Locking Disconnect Switch, Factory Installed                                                                                                                                             |          |               |
|                                             | Exterior Panels Insulated and Powder Coated, Color: IBM Charcoal Gray                                                                                                                    |          |               |
|                                             | 24" Adjustable Height Floorstand, per Unit                                                                                                                                               | 1        |               |
|                                             | Liebert Point Leak Detection Sensor Kit, Model: LT410                                                                                                                                    | 1        |               |
| MCS056E5AD                                  | Vertiv CoolPhase Outdoor Air-Cooled Microchannel Condenser (Specifications follow)                                                                                                       | 4        | Each          |
|                                             | Input Supply Voltage: 460 Volt, 3 Phase, 60 Hertz                                                                                                                                        |          |               |
|                                             | 65,000 amps RMS Short Circuit Current Rating                                                                                                                                             |          |               |
|                                             | Microchannel Aluminum Coil                                                                                                                                                               |          |               |
|                                             | Variable Speed EC Fans                                                                                                                                                                   |          |               |
|                                             | Premium Electronic Control Board Providing Communication with iCOM using CANbus                                                                                                          |          |               |
|                                             | Aluminum Exterior Panels                                                                                                                                                                 |          |               |
|                                             | 18" Aluminum Legs                                                                                                                                                                        |          |               |
| **Must be an authorized reseller to quote** |                                                                                                                                                                                          |          |               |

### Requirements

Liebert CW System

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-212-W001 **CONTRACT TERMS AND CONDITIONS—COMMERCIAL ITEMS ADDENDUM TO 52.212-4 (NAVSEA) (OCT 2018)** (Oct 2018)

(o) Warranty -- append the following to paragraph (o):

The contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale at no additional cost to the Government. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause nor does it limit the Government's rights with regard to the other terms and conditions of this contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty. The standard commercial warranty period shall begin upon final acceptance of the applicable material and/or services listed in the Schedule.

The contractor shall provide a copy of its standard commercial warranty (if applicable) with its offer. The warranty covers a period of \_\_\_ months. (*Offeror is to insert number.*)

The following information is hereby appended to the clause:

(w) Data Rights. The Government shall have data rights to all data generated under this contract or order in accordance with DFARS 252.227-7015.

(x) Ordering. The agency authorized to place delivery orders against this contract is: [Add ordering activity name]. Delivery orders will be placed against this contract, by the Government, using the SF 1449.

**(End of Text)**

**C-212-W002 COMMERCIAL SUPPLIER AGREEMENTS (NAVSEA) (MAR 2019)**

**(Mar 2019)**

(a) Commercial Supplier Agreement means End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement.

(b) Any Commercial Supplier Agreement must be provided in full text as part of a quote or offer without hyperlinks.

(c) The contract/order Schedule and Federal Acquisition Regulation (FAR) 52.212-4, Contract Terms and Conditions--Commercial Items, shall take precedence over any conflicting provisions in a Commercial Supplier Agreement.

(d) If any requirement in the Commercial Supplier Agreement conflicts with Federal law or regulations (see FAR 12.212(a)), the following shall apply:

(i) Any such requirement is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such requirement by virtue of it appearing in the Commercial Supplier Agreement. If the Commercial Supplier Agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such requirement.

(iii) Any such requirement is deemed to be stricken from the Commercial Supplier Agreement.

(e) Automatic renewals. License Agreements will expire at end of the term identified in the Purchase Order /Contract. Automatic renewals are not permitted and any such provision is void.

(f) Changes to the Commercial Supplier Agreement. Unilateral changes of the Commercial Supplier Agreement are impermissible and any requirement authorizing such changes is unenforceable. Changes must be in writing and executed by both parties to be effective.

(g) Third Part License (Embedded Software).

(i) The Contractor agrees that it has obtained all necessary licenses for the Government for any third party materials (including without limitation all Open Source licenses) provided within the product.

(ii) Contractor agrees that it complies with and shall continue to comply with all of its obligations under Third Party Licenses (including without limitation all Open Source licenses) associated with any third party materials provided within each product.

(iii) To the extent that the Government's use of the software products licensed herein is in compliance with the Contractor's Commercial Supplier Agreement, the Government's use will also be in compliance with any Third Party Licenses.

(h) Audits. In lieu of any audit provisions in the Commercial Supplier Agreement, the Government agrees that, no more than once every twelve (12) months or within a reasonable time after a transfer, the Contractor shall, upon reasonable notice, have the right to require that the Government conduct an internal audit to ascertain and verify the number of licenses in use and to verify that the Government's use of the product is in conformity with this Agreement. The Government is not required to use any tools provided by the Contractor to conduct the audit and shall not be required to pay for any tools provided by the Contractor to conduct the audit. The results of any such audit shall be kept confidential.

If verification discloses that the Government's use is not in conformity with this Agreement, the Government agrees to resolve any noncompliance by either removing or correcting the unlicensed installation and use of the software identified by the audit as not in conformity with this Agreement.

(i) Confidentiality. Commercial Supplier Agreements' terms and the final contract pricing may not be deemed confidential. Other marked confidential information will be appropriately guarded.

(j) Assignment. The Government shall have the right, without the prior written consent of the Contractor or its authorized resellers, to assign, reassign, or transfer software licenses among Government employees or the Government's rights in the Contractor's product to any governmental organization that is managed, operated, or controlled by the Government.

Such authorization includes sublicensing, and assignment or transfer among or between authorized users. In the event authorized users are reorganized or restructured such that their responsibilities and operations are transferred to another government agency, the agency shall have the right to assign the affected program licenses to a successor agency. The licensed agency and the successor agency agree to be bound to the Commercial Supplier Agreement as modified. The transferee shall be bound by the license metrics and limitations in this license. Government shall complete any documentation required by the Contractor to facilitate the transfer of this license, and continuation of support shall be the responsibility of the transferee.

For the avoidance of doubt, any assignment or transfer of licenses of the Contractor's products is also subject to all other terms of the Commercial Supplier Agreement, as well as the Contractor's policies governing product dependencies and version compatibility. Reassignment does not require that the license be under maintenance or support in order to execute a transfer.

(k) Litigation. Any requirement insisting that the commercial supplier or licensor control any litigation arising from the government's use of the contractor's supplies or services is deleted and unenforceable.

(l) Equitable Remedies. Equitable remedies, injunctive relief, and binding arbitration requirements shall not be enforced unless explicitly authorized by agency guidance or statute.

(m) Venue. Any claim or dispute shall be resolved under the Contract Disputes Act and FAR 52.233-1. The forum for resolution of disputes and applicable statutes of limitation shall be governed by federal law.

(n) Applicable law. In accordance with FAR 52.233-4, United States law shall apply to resolve any claim of breach of this contract and such actions shall be handled in the applicable Federal court of jurisdiction.

**(End of Text)**

## Section D - Packaging and Marking

## Section E - Inspection and Acceptance

The Government shall inspect and accept or reject all supplies or services tendered for acceptance by the Contractor within 15 to 30 calendar days of delivery or completion of services, unless other specific contract terms and conditions provide for a different timeframe. The Government will notify the Contractor in writing of any nonconforming supplies or services. The Contractor is responsible for correcting nonconforming supplies or services at no additional cost to the Government.

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact TPOC upon delivery for inspection/acceptance.</p> <p>DoDAAC: N63273<br/>CountryCode: USA</p> <p>COMBAT DIRECTION SYSTEMS ACTIVITY<br/>ATTN: NSLC DAM NECK, 2089 TARTAR AVE, BLDG. 559<br/>VIRGINIA BEACH, VA 23461-2097<br/>UNITED STATES</p> <p>Lee Ann Mizelle, Shipping/Receiving<br/>Email: lee.a.mizelle.civ@us.navy.mil</p> |
| 0002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact TPOC upon delivery for inspection/acceptance.</p> <p>DoDAAC: N63273<br/>CountryCode: USA</p> <p>COMBAT DIRECTION SYSTEMS ACTIVITY<br/>ATTN: NSLC DAM NECK, 2089 TARTAR AVE, BLDG. 559<br/>VIRGINIA BEACH, VA 23461-2097<br/>UNITED STATES</p> <p>Lee Ann Mizelle, Shipping/Receiving<br/>Email: lee.a.mizelle.civ@us.navy.mil</p> |
| 0003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact TPOC upon delivery for inspection/acceptance.</p> <p>DoDAAC: N63273<br/>CountryCode: USA</p> <p>COMBAT DIRECTION SYSTEMS ACTIVITY<br/>ATTN: NSLC DAM NECK, 2089 TARTAR AVE, BLDG. 559<br/>VIRGINIA BEACH, VA 23461-2097<br/>UNITED STATES</p> <p>Lee Ann Mizelle, Shipping/Receiving<br/>Email: lee.a.mizelle.civ@us.navy.mil</p> |

## Section F - Deliveries or Performance

### RECEIVING HOURS OF OPERATION - CDSA Dam Neck

All deliveries to the Receiving Officer, Naval Surface Warfare Center Dam Neck, shall be made Monday through Friday from 8:00 a.m. to 3:30 p.m., local time. Deliveries will not be accepted after 3:30 p.m. No deliveries will be accepted on government holidays.

### CONTRACTOR NOTICE REGARDING LATE DELIVERY

In the event the contractor anticipates or encounters difficulty in complying with the contract delivery schedule or date, he/she shall immediately notify, in writing, the Contracting Officer and the cognizant Contract Administration Services Office, if assigned. The notice shall give the pertinent details; however, such notice shall not be construed as a waiver by the Government of any contract delivery schedule, or of any rights or remedies provided by law or under this contract.

### Overall Contract Delivery Period

From date of lead time event to delivery

20 Weeks

Date of Award

Contractor

Destination

| Line Item | Delivery Schedule                                                                             | Quantity | Address and POC                                                                                                                                                                                                                                                                  | Special Handling/Notes                   |
|-----------|-----------------------------------------------------------------------------------------------|----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 0001      | Delivery Schedule<br>From date of lead time event<br>to delivery<br>20 Weeks<br>Date of Award | 4 Each   | Ship To<br>DoDAAC: N63273<br>CountryCode: USA<br>COMBAT DIRECTION SYSTEMS<br>ACTIVITY<br>ATTN: NSLC DAM NECK, 2089 TARTAR<br>AVE, BLDG. 559<br>VIRGINIA BEACH, VA 23461-2097<br>UNITED STATES<br><br>Lee Ann Mizelle, Shipping/Receiving<br>Email: lee.a.mizelle.civ@us.navy.mil | FoB Details<br>Contractor<br>Destination |
| 0002      | Delivery Schedule<br>From date of lead time event<br>to delivery<br>20 Weeks<br>Date of Award | 4 Each   | Ship To<br>DoDAAC: N63273<br>CountryCode: USA<br>COMBAT DIRECTION SYSTEMS<br>ACTIVITY<br>ATTN: NSLC DAM NECK, 2089 TARTAR<br>AVE, BLDG. 559<br>VIRGINIA BEACH, VA 23461-2097<br>UNITED STATES<br><br>Lee Ann Mizelle, Shipping/Receiving<br>Email: lee.a.mizelle.civ@us.navy.mil | FoB Details<br>Contractor<br>Destination |
| 0003      | Delivery Schedule<br>From date of lead time event<br>to delivery<br>20 Weeks<br>Date of Award | 1 Lot    | Ship To<br>DoDAAC: N63273<br>CountryCode: USA<br>COMBAT DIRECTION SYSTEMS<br>ACTIVITY<br>ATTN: NSLC DAM NECK, 2089 TARTAR<br>AVE, BLDG. 559                                                                                                                                      |                                          |

|  |  |  |                                                                                                                                   |  |
|--|--|--|-----------------------------------------------------------------------------------------------------------------------------------|--|
|  |  |  | VIRGINIA BEACH, VA 23461-2097<br>UNITED STATES<br><br>Lee Ann Mizelle, Shipping/Receiving<br>Email: lee.a.mizelle.civ@us.navy.mil |  |
|--|--|--|-----------------------------------------------------------------------------------------------------------------------------------|--|

**FAR Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>        | <b>Effective Date</b> | <b>Alternate/ Deviation</b> | <b>Variation Effective Date</b> |
|---------------|---------------------|-----------------------|-----------------------------|---------------------------------|
| 52.247-34     | F.o.b. Destination. | Jan 1991              |                             |                                 |

## Section G - Contract Administration Data

### Final Invoicing Instructions

Please note, when invoicing be sure to mark the last invoice in the WAWF system as "final" so that the invoice is properly closed out once payment has been processed, unless a partial shipment has been authorized. If partial shipment has been authorized, partial payment invoices should not be marked as "final". All items of each CLIN must be delivered/received prior to marking the invoice as "final".

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports. | Dec 2018       |                      |                          |

### DFARS Clauses Incorporated by Full Text

**252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)**

#### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

### [X] Invoice and Receiving Report Combo (CLINs 0001 & 0002)

[X] Acceptance - Destination

[X] Inspection - Destination

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

**[X] Invoice 2 in 1 (CLIN 0003)**

[X] Acceptance - Destination

[X] Inspection - Destination

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF        | Data to be entered in WAWF |
|---------------------------|----------------------------|
| Pay Official DoDAAC       | <b>TBD</b>                 |
| Issue By DoDAAC           | <b>N00178</b>              |
| Admin DoDAAC              | <b>N00178</b>              |
| Inspect By DoDAAC         | <b>TBD</b>                 |
| Ship To Code              | <b>TBD</b>                 |
| Ship From Code            | ==                         |
| Mark For Code             | ==                         |
| Service Approver (DoDAAC) | <b>TBD</b>                 |

|                           |            |
|---------------------------|------------|
| Service Acceptor (DoDAAC) | =====      |
| Accept at Other DoDAAC    | =====      |
| LPO DoDAAC                | <b>TBD</b> |
| DCAA Auditor DoDAAC       | =====      |
| Other DoDAAC(s)           | =====      |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

**TBD**

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

#### **Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**G-232-H005** **SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)** **(Jan 2019)**

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed

supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

**(End of Text)**

**G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)**

**(Feb 2024)**

**Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) ([https://www.acq.osd.mil/dpap/dars/pgi/pgi\\_htm/current/PGI204\\_71.htm#payment\\_instructions](https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions)).**

**(End of text)**

## **Section H - Special Contract Requirements**

The Department of the Navy has adopted the FAR 2026 Overhaul. Prescribed contract forms issued by the General Services Administration have not yet been updated to reflect the revised FAR structure. The existing form is therefore used, and any references to prior FAR citations are superseded by the FAR as revised.

## Section I - Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-12 | Limitation on Payments to Influence Certain Federal Transactions.                                                                               | Jun 2020       |                      |                          |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                             | Jan 2017       |                      |                          |
| 52.204-13 | System for Award Management-Maintenance.                                                                                                        | Feb 2026       |                      |                          |
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                                                                               | Dec 2014       |                      |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. | Feb 2026       |                      |                          |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations.                                                                                 | Feb 2026       |                      |                          |
| 52.211-15 | Defense Priority and Allocation Requirements.                                                                                                   | Apr 2008       |                      |                          |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services.                                                                               | Feb 2026       |                      |                          |
| 52.222-3  | Convict Labor.                                                                                                                                  | Feb 2026       |                      |                          |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies.                                                                                          | Feb 2026       |                      |                          |
| 52.222-35 | Equal Opportunity for Veterans.                                                                                                                 | Feb 2026       |                      |                          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities.                                                                                                | Feb 2026       |                      |                          |
| 52.222-37 | Employment Reports on Veterans.                                                                                                                 | Feb 2026       |                      |                          |
| 52.222-50 | Combating Trafficking in Persons.                                                                                                               | Feb 2026       |                      |                          |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                            | May 2024       |                      |                          |
| 52.232-18 | Availability of Funds.                                                                                                                          | Apr 1984       |                      |                          |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                                                               | Oct 2018       |                      |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                                                                   | Jun 2013       |                      |                          |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                                                                | Mar 2023       |                      |                          |
| 52.233-1  | Disputes.                                                                                                                                       | Feb 2026       |                      |                          |
| 52.233-3  | Protest after Award.                                                                                                                            | Feb 2026       |                      |                          |
| 52.233-4  | Applicable Law for Breach of Contract Claim.                                                                                                    | Feb 2026       |                      |                          |
| 52.240-91 | Security Prohibitions and Exclusions.                                                                                                           | Feb 2026       |                      |                          |
| 52.243-1  | Changes-Fixed Price.                                                                                                                            | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                    | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                           | Sep 2011       |                      |                          |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                 | Dec 2022       |                      |                          |
| 252.204-7000 | Disclosure of Information.                                                                               | Oct 2016       |                      |                          |
| 252.204-7003 | Control of Government Personnel Work Product.                                                            | Apr 1992       |                      |                          |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors.                                                        | Jan 2023       |                      |                          |
| 252.204-7009 | Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.      | Jan 2023       |                      |                          |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1) | May 2024       | Deviation 2024-O0013 | May 2024                 |
| 252.204-7015 | Notice of Authorized Disclosure of Information for Litigation Support.                                   | Jan 2023       |                      |                          |
| 252.225-7001 | Buy American and Balance of Payments Program. (Alternate I)                                              | Feb 2024       | Alternate I          | Feb 2024                 |
| 252.225-7012 | Preference for Certain Domestic Commodities.                                                             | Apr 2022       |                      |                          |
| 252.225-7013 | Duty-Free Entry.                                                                                         | Aug 2025       |                      |                          |
| 252.225-7048 | Export-Controlled Items.                                                                                 | Jun 2013       |                      |                          |
| 252.232-7010 | Levies on Contract Payments.                                                                             | Dec 2006       |                      |                          |
| 252.239-7010 | Cloud Computing Services.                                                                                | Jan 2023       |                      |                          |
| 252.239-7018 | Supply Chain Risk.                                                                                       | Dec 2022       |                      |                          |
| 252.243-7001 | Pricing of Contract Modifications.                                                                       | Dec 1991       |                      |                          |
| 252.246-7007 | Contractor Counterfeit Electronic Part Detection and Avoidance System.                                   | Jan 2023       |                      |                          |
| 252.246-7008 | Sources of Electronic Parts.                                                                             | Jan 2023       |                      |                          |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                       | Oct 2024       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.219-28 Postaward Small Business Program Rerepresentation. (Feb 2026)**

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026)

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under \_\_\_\_ NAICS Code assigned to \_\_\_\_ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_\_] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [\_\_\_\_\_] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [\_\_\_\_\_] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [\_\_\_\_\_] Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

## 52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

### CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/> \_\_\_\_\_ [Insert one or more Internet addresses]

(End of clause)

## DFARS Clauses Incorporated by Full Text

### 252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

#### ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

SEE SCHEDULE

=====

=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

SEE SCHEDULE

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number \_\_\_\_.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number \_\_\_\_.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

part. (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.\*\*

(4) Issuing agency code (if concatenated unique item identifier is used).\*\*

(5) Enterprise identifier (if concatenated unique item identifier is used).\*\*

(6) Original part number (if there is serialization within the original part number).\*\*

(7) Lot or batch number (if there is serialization within the lot or batch number).\*\*

(8) Current part number (optional and only if not the same as the original part number).\*\*

(9) Current part number effective date (optional and only if current part number is used).\*\*

(10) Serial number (if concatenated unique item identifier is used).\*\*

(11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) \_\_\_\_\_, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

## Section J - List of Attachments

## Section K - Representations, Certification, & Other Statements

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                      | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|--------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-11 | Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. | Sep 2024       |                      |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications.                   | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                              | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|--------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.   | Sep 2022       |                      |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls. | Oct 2016       |                      |                          |

### FAR Clauses Incorporated by Full Text

#### 52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Feb 2026)

##### PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (FEB 2026)

(a) *Definitions.* As used in this clause-

*Inverted domestic corporation* means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

*Subsidiary* means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation.* The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

#### 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Feb 2026)

##### REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

#### DFARS Clauses Incorporated by Full Text

#### 252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2025) Alternate A (Oct 2025)

#### ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:  
[Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR/DFARS Provision # | Title | Date  | Change |
|-----------------------|-------|-------|--------|
| _____                 | _____ | _____ | _____  |
| _____                 | _____ | _____ | _____  |
| _____                 | _____ | _____ | _____  |
| _____                 | _____ | _____ | _____  |
| _____                 | _____ | _____ | _____  |

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

## 252.239-7009 Representation of Use of Cloud Computing.

(Sep 2015)

### REPRESENTATION OF USE OF CLOUD COMPUTING (SEP 2015)

(a) *Definition.* "Cloud computing," as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

(b) The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

(c) *Representation.* The Offeror represents that it-

☐ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

☐ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

## Section L - Instructions, Conditions, & Notices to Offerors or Quoters

### FAR Clauses Incorporated by Reference

| Number   | Title                                                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|----------|-----------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.204-7 | System for Award Management-Registration.                             | Feb 2026       |                      |                          |
| 52.212-1 | Instructions to Offerors-Commercial Products and Commercial Services. | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.            | Mar 2023       |                      |                          |
| 252.215-7013 | Supplies and Services Provided by Nontraditional Defense Contractors. | Jan 2023       |                      |                          |
| 252.239-7017 | Notice of Supply Chain Risk.                                          | Dec 2022       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)**

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)**

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/> \_\_\_\_\_ [Insert one or more Internet addresses]

(End of provision)

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

**L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024) (Jul 2024)**

All offerors shall submit the following information in their proposal:

(1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);

(2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

(3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges;  
and

(4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

**(End of Provision)**

## **Section M - Evaluation Factors for Award**